

Opinion of SOTOMAYOR, J.

sphere of law enforcement’” that remained “a permissible area for *Bivens* claims.” 998 F. 3d 370, 389 (CA9 2021) (quoting *Ziglar*, 582 U.S., at 134). The court separately held that Boule’s First Amendment claim could proceed under *Bivens*.

This Court granted certiorari. 595 U.S. — (2021).

II

A

In *Bivens*, the plaintiff alleged that Federal Bureau of Narcotics agents unlawfully entered his apartment in New York City and used constitutionally unreasonable force to arrest him. 403 U.S., at 389. This Court observed that an “agent acting—albeit unconstitutionally—in the name of the United States possesses a far greater capacity for harm than an individual trespasser exercising no authority other than his own.” *Id.*, at 392. The Fourth Amendment, the Court explained, “guarantees to citizens of the United States the absolute right to be free from unreasonable searches and seizures carried out by virtue of federal authority.” *Ibid.*

The Court ultimately held that a “violation of [the Fourth Amendment] by a federal agent acting under color of his authority gives rise to a cause of action for damages.” *Id.*, at 389. In doing so, the Court observed that existing state-law causes of action were no substitute for a federal cause of action because “[t]he interests protected by state laws regulating trespass and the invasion of privacy” and those protected by the Fourth Amendment “may be inconsistent or even hostile.” *Id.*, at 394; see also *id.*, at 410 (Harlan, J., concurring in judgment) (“For people in *Bivens*’ shoes, it is damages or nothing”).¹ The Court also noted that the case

¹ For example, an individual “may bar the door against an unwelcome private intruder, or call the police if he persists in seeking entrance” and may seek damages under state law “for any consequent trespass.” *Bivens*, 403 U.S., at 394. By contrast, “[t]he mere invocation of federal power by a federal law enforcement official will normally render futile any